7. Legal Aspects of Occupational Safety and Health

Introduction

The Occupational Safety and Health Act was signed into law December 29, 1970. Its purposes were to assure safe and healthful working conditions for the nation's working men and women and to preserve human resources. The Act delegated certain major responsibilities and authorities to the Department of Labor:

1. To promulgate, modify, and improve mandatory occupational safety and health standards.

2. To enter plants.

3. To prescribe regulations for maintaining accurate records.

4. To develop and maintain statistics on occupational safety and health.

5. To establish and supervise programs for the education and training of employee and employer personnel.

6. To make grants to states.

Certain other responsibilities and authorities were delegated to the Department of Health, Education, and Welfare (HEW); authority has since been delegated to the Department of Health and Human Services (HHS):

1. To conduct, directly or by grants or contracts, research, experiments, or demonstrations relevant to occupational safety and health.

2. To develop criteria for dealing with toxic materials and harmful physical agents.

3. To make toxicity determinations on request by employer or employee groups.

4. To publish an annual listing of all known toxic substances.

5. To conduct directly, or by grants and contracts, educational programs aimed at providing an adequate supply of qualified personnel.

6. To establish a National Institute for Occupational Safety and Health.

Congress also established several committees to fulfill the provisions of the act: the 12-member National Advisory Committee on Occupational Safety and Health; the Occupational Safety and Health Review Commission to adjudicate disputes; and the National Commission of State Workmen's Compensation Laws to study and evaluate such laws.

The Occupational Safety and Health Act applies directly to all employers except Federal installations and states or political subdivisions of the states. It covers every workplace except those for which other Federal agencies and specified state agencies (such as the Atomic Energy Commission) exercise statutory authority to prescribe and enforce standards and regulations affecting occupational safety and health.

OSHA--Prescribed Duties

The General Duty Clause states that every employer is obligated "...to furnish to each of his employees employment and a place of employment which are free from recognized hazards that are causing or likely to cause death or serious physical harm to his employee."

There are two types of standards defined by the General Duty Clause. The first type, General Standards, is applicable to all employees and is contained in Title 29, Code of Federal Regulations, Part 1910. The second type, Particular Standards, (such as the Safety and Health Regulations for Construction) which is applicable to specific industries and is contained in Title 29, Code of Federal Regulations, Part 1518.

Inspections

The Act contains a general prohibition against giving advance notice of inspection, except in limited circumstances:

1. In cases of apparent imminent danger to enable the employer to abate the danger as quickly as possible.

2. In circumstances where the inspection can most effectively be conducted after regular business hours or where special preparations are necessary for an inspection.

3. Where necessary to assure the presence of representatives of the employer and employees or the appropriate personnel needed to aid in the inspection.

4. In other circumstances where the Area Director determines that giving advance notice would enhance the probability of an effective and thorough inspection.

Inspectors are authorized to enter without delay at reasonable times where work is performed by employees of an employer; and to conduct investigations during regular working hours at other reasonable times within reasonable limits and in a reasonable manner.

The Act also authorizes an inspector to examine pertinent conditions, including structures, machines, apparatuses, devices, equipment, and materials; and to question privately any employer, owner, operator, agent or employee.

Citations

The OSHA Area Director issues citations when appropriate. OSHA Form 2A--Citation for Serious Violation is issued when investigation reveals a serious violation; OSHA Form 2B--Citation is issued when investigation reveals a "de minimis" violation.

OSHA Form 3--Notification of Proposed Penalty is issued to accompany each Citation for Serious Violation. If the citation being issued is for a violation found after the second investigation and indicates a failure to correct a previous violation, the Area Director issues OSHA Form 3A--Notification of Failure to Correct Violation and of Proposed Additional Penalty to accompany the Citation.

Recordkeeping: Posting of Periodic Reports

OSHA defines recordable occupational injuries and illnesses as occupational illnesses and injuries which result in fatalities, or nonfatal cases which result in loss of work days, transfer to another job, or termination of employment; and illnesses and injuries which require medical treatment other than first aid or involve the loss of consciousness or restriction in motion.

Any recordable injury or illness must be entered in OSHA Form 100--Log of Occupational Injuries and Illnesses as soon as practical, but no later than six days after the responsible party has received word that such an injury or illness has occurred. (An equivalent form that contains all details provided in OSHA Form 100 may be used.) OSHA Form 101--Supplemental Record of Occupational Illnesses and Injuries may be used when Form 100 has been filed.

Form 102--Annual Summary must be completed for the previous year no later than January 31. It must be certified by the employer to be true and correct, and it must be posted at each of the employer's establishments for 30 consecutive days, beginning no later than February 1.

Penalties

The Act provides criminal sentences, criminal fines, and civil penalties to be assessed against an employer for violation of either the General Duty Clause or of specific standards. The types of violations defined by the Act are:

--willful violations causing death of an employee;
--willful or repeated violations;
--serious violations;
--nonserious or other violations;

-- "de minimis" violations;
-- daily penalties for failure to abate;
-- failure to post notice of employee rights under Act;
-- failure to post citations;
-- failure to report employment deaths;
-- failure to maintain records;
-- penalty for giving false information; and
-- penalties for killing, assaulting, or hampering the work of enforcement personnel.

Contest of Citations and Penalties

An employer who receives a citation and proposed penalties has the right to contest either the citation or the proposed penalties, or both, to the Occupational Safety and Health Review Commission. The contest must be filed within 15 working days from receipt of the citation and proposed penalty.

Within seven days of receipt of the notice of contest, the Area Director must file with the Commission the notice of contest, or modification of abatement, and all citations and notifications of failure to correct violations.

Within 20 days of receipt of the notice of contest, the Secretary of Labor files with the Commission a complaint against the employer. The employer will receive a copy of the complaint, as will the representative(s) of the employees who have elected-party status. The employer must file an answer within 15 days after receipt of the complaint.

After the Commission has received the employer's notice of contest from the Area Director, the Commission appoints a judge to conduct the hearing. The appointed judge will control all proceedings, discovery, depositions, and production of documents in the case.

After the hearing, the employer or other party against whom the Commission has filed an adverse order has the right to have the Commission's order reviewed by the Court of Appeals. The appellate review is limited to only those questions of law or objections raised before the Commission.

Variances

The Act provides that any affected employer may be granted a temporary variance from a standard, a permanent variance from a standard, or a variance, tolerance, or exemption for any or all provisions of the Act.

To obtain a temporary variance, the employer must establish that:

-- he is unable to comply with a standard by its effective date because of the unavailability of professional or technical personnel or of materials and equipment needed to come into compliance with the standard, or because necessary construction or alteration of facilities cannot be completed by the effective date;

-- he is taking all available steps to safeguard his employees against the hazards covered by the standard;

-- he has an effective program for coming into compliance with the standard as quickly as possible.

The application requirements for a temporary variance are detailed in 29 CFR Section 1905.10(b)(1972).

To obtain a permanent variance, an employer must establish, by a preponderance of evidence, that the conditions, practices, means, methods, operations and processes he uses or proposes to use will provide employment and a place of employment for his employees which are as safe and healthful as those which would prevail if he complied with the standard. Application requirements for a permanent variance are detailed in 29 CFR Section 1905.11(b)(1972).

Any employer must request a variance, tolerance, or exemption from the Act if it is necessary to avoid serious impairment of the national defense. Application requirements for this type of variance are detailed in 20 CFR Section 1905.12(b)(1972).

When an employer files an application with the Assistant Secretary for a temporary variance, permanent variance, or a variance, tolerance or exemption from the Act, the request will be referred to a hearing examiner. The hearing examiner will preside over the hearing and conduct and control all proceedings.

The hearing examiner will make his decision based upon the evidence presented at the hearing. The decision will become final 20 days after it has been rendered unless exceptions are filed.

If any exceptions are filed, the Assistant Secretary will review the hearing record and transcript and then rule on the exceptions and the rule or order of the hearing examiner. Only the decision of the Assistant Secretary may be appealed and reviewed by the Court of Appeals.